

Certificate

of

(hereinafter called "Correspondent")
Evidencing Placement of Insurance with certain
UNDERWRITERS

Correspondent hereby certifies that insurance as described herein has been effected with certain Underwriters.

IMPORTANT NOTICE

- 1. The insurance policy that you have purchased is being issued by an insurer that is not licensed by the State of California. These companies are called “nonadmitted” or “surplus line” insurers.**
- 2. The insurer is not subject to the financial solvency regulation and enforcement that apply to California licensed insurers.**
- 3. The insurer does not participate in any of the insurance guarantee funds created by California law. Therefore, these funds will not pay your claims or protect your assets if the insurer becomes insolvent and is unable to make payments as promised.**
- 4. The insurer should be licensed either as a foreign insurer in another state in the United States or as a non-United States (alien) insurer. You should ask questions of your insurance agent, broker, or “surplus line” broker or contact the California Department of Insurance at the toll-free number 1-800-927-4357 or internet website www.insurance.ca.gov. Ask whether or not the insurer is licensed as a foreign or non-United States (alien) insurer and for additional information about the insurer. You may also visit the NAIC’s internet website at www.naic.org. The NAIC – the National Association of Insurance Commissioners – is the regulatory support organization created and governed by the chief insurance regulators in the United States.**
- 5. Foreign insurers should be licensed by a state in the United States and you may contact that state’s department of insurance to obtain more information about that insurer. You can find a link to each state from the NAIC internet website: https://naic.org/state_web_map.htm.**
- 6. For non-United States (alien) insurers, the insurer should be licensed by a country outside of the United States and should be on the NAIC’s International Insurers Department (IID) listing of approved nonadmitted non-United States insurers. Ask your agent, broker, or “surplus line” broker to obtain more information about that insurer.**

7. California maintains a “List of Approved Surplus Line Insurers (LASLI).” Ask your agent or broker if the insurer is on that list, or view that list at the internet website of the California Department of Insurance: www.insurance.ca.gov/01-consumers/120-company/07-lasli/lasli.cfm.

8. If you, as the applicant, required that the insurance policy you have purchased be effective immediately, either because existing coverage was going to lapse within two business days or because you were required to have coverage within two business days, and you did not receive this disclosure form and a request for your signature until after coverage became effective, you have the right to cancel this policy within five days of receiving this disclosure. If you cancel coverage, the premium will be prorated and any broker’s fee charged for this insurance will be returned to you.

Such insurance has been placed in accordance with the limited authorization granted to the Correspondent by certain Underwriters, whose syndicate numbers and the proportions underwritten by them can be ascertained from the office of the said Correspondent (such Underwriters being hereinafter called “Underwriters”) and in consideration of the premium specified herein, Underwriters have agreed to bind themselves severally and not jointly each for his own part and not one for another, their Executors and Administrators.

The Assured is requested to read this Certificate and if it is not correct, return it immediately to the Correspondent for appropriate alteration.

CERTIFICATE PROVISIONS

1. This Certificate is subject to the following clauses:

- a) Wherever the word "Company" appears in the wording and clauses forming part of this document it shall be substituted by the word "Underwriters" or "Insurers" as applicable.
- b) Wherever the word "Certificate" appears in the wording and clauses forming part of this document it shall be substituted by the word "Policy".
- c) Wherever the words "Named Insured", "Insured Person" or "Assured" appear, these shall be deemed to mean and read the same
- d) Wherever the term US\$, \$ or USD appears, same shall be deemed to mean and read U S Dollars
- e) For the purposes of the insurance the following terms are also synonymous:

REF, LPO, LMA, NMA, LSW

- 2. **Signature Required** This certificate shall not be valid unless signed by the Intermediary named in the attached Declaration Page.
- 3. **Correspondent/Intermediary Not Insurer** Neither the Correspondent nor the Intermediary is an Insurer hereunder and neither of them is nor shall be liable for any loss or claim whatsoever. The Insurers hereunder are those whose names can be ascertained as hereinafter set forth.
- 4. **Cancellation** If this certificate provides for cancellation and this certificate is cancelled after the inception date, earned premium must be paid for the time the insurance has been in force.
- 5. **Assignment** This certificate shall not be assigned either in whole or in part without the written consent of the Correspondent endorsed hereon by the Intermediary.
- 6. **Attached Conditions Incorporated** This certificate is made and accepted subject to all the provisions conditions and warranties set forth herein, attached, or endorsed, all of which are to be considered as incorporated herein.
- 7. **Short Rate Cancellation** If the attached provisions provide for cancellation, the table below will be used to calculate the short rate proportion of the premium when applicable under the terms of cancellation.

SHORT RATE CANCELLATION TABLE

Days	Per Cent	Days	Per Cent	Days	Per Cent of	Days	Per Cent
1	5%	66-69	29%	154-156	53%	256-260	77%
2	6	70-73	30	157-160	54	261-264	78
3-4	7	74-76	31	161-164	55	265-269	79
5-6	8	77-80	32	165-167	56	270-273 (9 mos)...	80
7-8	9	81-83	33	168-171	57	274-278	81
9-10	10	84-87	34	172-175	58	279-282	82
11-12	11	88-91 (3 mos)...	35	176-178	59	283-287	83
13-14	12	92-94	36	179-182 (6 mos)...	60	288-291	84
15-16	13	95-98	37	183-187	61	292-296	85
17-18	14	99-102	38	188-191	62	297-301	86
19-20	15	103-105	39	192-196	63	302-305 (10 mos)...	87
21-22	16	106-109	40	197-200	64	306-310	88
23-25	17	110-113	41	201-205	65	311-314	89
26-29	18	114-116	42	206-209	66	315-319	90
30-32 (1 mo)...	19	117-120	43	210-214 (7 mos)...	67	320-323	91
33-36	20	121-124 (4 mos)...	44	215-218	68	324-328	92
37-40	21	125-127	45	219-223	69	329-332	93
41-43	22	128-131	46	224-228	70	333-337 (11 mos)...	94
44-47	23	132-135	47	229-232	71	338-342	95
48-51	24	136-138	48	233-237	72	343-346	96
52-54	25	139-142	49	238-241	73	347-351	97
55-58	26	143-146	50	242-246 (8 mos)...	74	352-355	98
59-62 (2 mos)...	27	147-149	51	247-250	75	356-360	99
63-65	28	150-153 (5 mos)...	52	251-255	76	361-365 (12 mos)...	100

If insurance has been in force for one year or less, apply the short rate table for annual insurance to the full annual premium determined as for insurance written for a term of one year.

If insurance has been in force for more than one year.

Determine full annual premium as for insurance written for a term of one year.
Deduct such premium from the full insurance premium and on the remainder calculate the pro rata earned premium on the basis of the ratio of the length of time beyond one year the insurance has been in force to the length of time beyond one year for which the insurance was originally written.

Add premium produced in accordance with items (1) and (2) to obtain earned premium during full period insurance has been in force.

Any provisions or conditions appearing in any forms attached hereto which conflict with or alter the provisions set out above shall supersede the above provisions insofar as the latter are inconsistent with any provisions or conditions appearing in such attached forms.

Providing Information to Insurers: Contracts of insurance placed by Tokio Marine Highland Insurance Services Inc. are subject to local state and/or US federal law and jurisdiction. Care must be taken to ensure that all legal and regulatory requirements in relation to those contracts, including requirements for disclosure of information to insurers in relation to them, are complied with.

Commission:

You are entitled to request and Tokio Marine Highland Insurance Services Inc. is happy to disclose, at any time, information regarding any commission which they may have received as a result of placing your insurance business.

- 2) This coverage may have been underwritten with one or more of a number of underwriting facilities granted to Tokio Marine Highland Insurance Services Inc., under which a profit commission may or may not become payable to Tokio Marine Highland Insurance Services Inc.

Claim Referral. In respect of any claim referred by the Insured to Tokio Marine Highland Insurance Services Inc., Tokio Marine Highland Insurance Services Inc. acts as agent for the Insurers and not the insured.

TOKIO MARINE HIGHLAND INSURANCE SERVICES INC.'S COMPLAINTS PROCEDURE

HOW TO MAKE A COMPLAINT

Should you wish to make a complaint against Tokio Marine Highland Insurance Services Inc. you may do so either in writing or verbally to the Compliance Officer at:

Tokio Marine Highland Insurance Services Inc.

9200 S Dadeland Blvd, Ste 409

Miami, FL 33156

Phone: (888) 386-9488

Fax: (626) 463-2121

Email: ContactUs@tmhighland.com

H TOKIO MARINE HIGHLAND INSURANCE SERVICES INC.'S COMMITMENT TO CUSTOMERS

Tokio Marine Highland Insurance Services Inc. is committed to handling all customer complaints received promptly, fairly and in line with regulatory guidelines. We deem a complaint to be any expression of dissatisfaction, whether oral or written, and whether justified or not, from or on behalf of an eligible complainant about the firm's provision of, or failure to provide, insurance.

COMMERCIAL PRIMARY FLOOD INSURANCE

Authority Ref#

B0572NA25WN01 B0572NA25WN03
RF03738A25

Certificate No.

PFPC30000380-01

Customer No. 389220001

1. Name & Mailing Address of Policyholder:

University Corporation for Advanced Internet
Development DBA Internet 2
1000 Oakbrook Drive, Suite 300
Ann Harbor, MI 48104

Property Address:

1380 Kifer Road, 1st Floor
Sunnyvale, CA 94086

Additional Named Insureds

Mortgagee(s), Loss Payee(s), Addt'l. Interest(s)

2. Policy Effective

From 04/15/2025 **To** 04/15/2026

Both days at 12:01 a.m. standard time

3. Insurance is effective 100% per security listing attached.

4. Coverages, Limits of Insurance and Deductibles:

Coverage	Limit of Insurance	Deductible	Premium
Building	\$0.00		\$0.00
Contents	\$500,000	\$5,000	\$2,300.00
Business Income	\$25,000	15 Days	\$135.00
			Base Premium: \$2,435.00
			Policy Fee: \$50.00
			Stamping Fee: \$4.47
			Surplus Lines Tax: \$74.55

FLOOD ZONE: B

5. Special Conditions: This insurance applies to the property described above and for which a coverage amount and premium are stated, and is subject to the following forms: SLC-3 (COR) CA, 2025 Market Page Primary, PFIP-CPF-1, LMA5096 (Combined Certificate), LMA 3100A, HDI Privacy Notice, Tysers Cyber Endorsement 1, Combined REF NMA 1998, GLISE DPSFPN 102024, B&C DPSFPN 25102024, LMA9098B (D2), LMA9136B, LMA9191A (amended).

6. Service of Suit may be made upon: See NMA1998 Service of Suit Nominees.

7. In the event of a claim, please notify the following:

Precise Adjustments - (800) 627-7601 | 17 Cowboys Way, Suite 450, Frisco TX 75034
FloodClaims@preciseadjustments.com For all other inquiries please call your producer.

Issued Date: 04/30/2025

Producer:

AON Risk Services Inc. of Washington, DC
1120 20th Street NW, Suite 660
Washington, DC 20036

Surplus Lines Broker:

RSG Specialty LLC, 0G97516
1515 Market St, Ste 1110
Philadelphia, PA 19102

Tokio Marine Highland Insurance Services, Inc.

Countersignature: _____

By: _____



Authorized Representative

DISCLAIMER:

THIS INSURANCE IS ISSUED PURSUANT TO THE CALIFORNIA INSURANCE CODE, SECTIONS 1760 THROUGH 1780, AND IS PLACED IN AN INSURER OR INSURERS NOT HOLDING A CERTIFICATE OF AUTHORITY FROM OR REGULATED BY THE CALIFORNIA INSURANCE COMMISSIONER.

IMPORTANT NOTICE:

- 1. The insurance policy that you have purchased is being issued by an insurer that is not licensed by the State of California. These companies are called "nonadmitted" or "surplus line" insurers.**
- 2. The insurer is not subject to the financial solvency regulation and enforcement that apply to California licensed insurers.**
- 3. The insurer does not participate in any of the insurance guarantee funds created by California law. Therefore, these funds will not pay your claims or protect your assets if the insurer becomes insolvent and is unable to make payments as promised.**
- 4. The insurer should be licensed either as a foreign insurer in another state in the United States or as a non-United States (alien) insurer. You should ask questions of your insurance agent, broker, or "surplus line" broker or contact the California Department of Insurance at the toll-free number 1-800-927-4357 or internet website www.insurance.ca.gov. Ask whether or not the insurer is licensed as a foreign or non-United States (alien) insurer and for additional information about the insurer. You may also visit the NAIC's internet website at www.naic.org. The NAIC-the National Association of Insurance Commissioners-is the regulatory support organization created and governed by the chief insurance regulators in the United States.**
- 5. Foreign insurers should be licensed by a state in the United States and you may contact that state's department of insurance to obtain more information about that insurer. You can find a link to each state from this NAIC internet website: https://naic.org/state_web_map.htm.**
- 6. For non-United States (alien) insurers, the insurer should be licensed by a country outside of the United States and should be on**

the NAIC's International Insurers Department (IID) listing of approved nonadmitted non-United States insurers. Ask your agent, broker, or "surplus line" broker to obtain more information about that insurer.

7. California maintains a "List of Approved Surplus Line Insurers (LASLI)." Ask your agent or broker if the insurer is on that list, or view that list at the internet website of the California Department of Insurance: www.insurance.ca.gov/01-consumers/120-company/07-lasli/lasli.cfm.

8. If you, as the applicant, required that the insurance policy you have purchased be effective immediately, either because existing coverage was going to lapse within two business days or because you were required to have coverage within two business days, and you did not receive this disclosure form and a request for your signature until after coverage became effective, you have the right to cancel this policy within five days of receiving this disclosure. If you cancel coverage, the premium will be prorated and any broker's fee charged for this insurance will be returned to you.

SECURITY

Order Hereon 100% of 100%

Binding Authority Reference B0572 NA25WN01

**100% of 49.00% Order
Certain Underwriters at Lloyd's, led by Managing Agent BRIT, Syndicate 2987**

22.5000%	SYNDICATE 2987 BRT
27.1497%	SYNDICATE 1200 WSM
4.9363%	SYNDICATE 2121 ARG
4.9363%	SYNDICATE 1969 APL
7.8981%	SYNDICATE 5000 TRV
6.9108%	SYNDICATE 9029 KII
8.8854%	SYNDICATE 2001 AML
2.9617%	SYNDICATE 0318 CIN
4.9363%	SYNDICATE 0457 MRS
8.8854%	HDI GLOBAL SPECIALTY SE

100.0000%

Binding Authority Reference B0572 NA25WN03

100% of 21.00% Order

100.0000%	HAMILTON INSURANCE DAC
-----------	------------------------

100.0000%

Binding Authority Reference RF03738A25

100% of 30.00% Order

100.0000%	GREAT LAKES INSURANCE SE AUTHORITY AGREEMENT NUMBER: 3738/2025
-----------	---

100.0000%

PRIVATE FLOOD INSURANCE PROGRAM

PRIMARY FLOOD INSURANCE POLICY -- COMMERCIAL PROPERTY FORM

PLEASE READ THIS POLICY CAREFULLY.

THE FLOOD INSURANCE PROVIDED IS SUBJECT TO LIMITATIONS, RESTRICTIONS, AND EXCLUSIONS.

I. AGREEMENT

A. INSURING AGREEMENT

We will pay you for **direct physical loss by or from flood** to your insured property if you:

1. Have paid the correct premium;
2. Have complied with all terms and conditions of this **policy**; and
3. Have furnished accurate information and statements.

We have the right to review the information you give us at any time and to revise your **policy** based on our review.

B. COMPLIANCE GUARANTEE

1. This **policy** meets the definition of private flood insurance contained in 42 U.S.C. 4012a(b)(7) and the corresponding regulation.
2. This **policy** meets the definition of private flood insurance contained in 24 CFR 203.16a(e) for FHA-insured mortgages.
3. To the extent that any provision within this **policy** applicable to the **flood** coverage provided herein fails to meet the definition of private flood insurance contained therein, such provision herein is hereby amended to conform to the minimum requirements of such definition.
4. All cancellation and nonrenewal notices will be sent to the named insured and to each mortgagee listed on the Policy at least forty-five (45) days prior to the effective date of each such termination.
5. As an alternative to **flood** coverage contained in this **policy**, flood insurance is available under the **National Flood Insurance Program (NFIP)** through an insurance agent who will obtain a policy either directly through the **NFIP** or through an insurance company that participates in the **NFIP**.

II. DEFINITIONS

- A. In this **policy**, "you" and "your" refer to the insured(s) shown on the **Declarations Page** of this **policy**. "Insured(s)" includes: Any mortgagee and loss payee named in the application and **Declarations Page**, as well as any other mortgagee or loss payee determined to exist at the time of loss in the order of precedence. "We," "us," and "our" refer to the insurer.

Some definitions are complex because they are provided as they appear in the law or regulations, or result from court cases. The precise definitions are intended to protect you.

Flood, as used in this flood insurance **policy**, means:

1. A general and temporary condition of partial or complete inundation of two or more acres of normally dry land area or of two or more properties (one of which is your property) from:
 - a. Overflow of inland or tidal waters;
 - b. Unusual and rapid accumulation or runoff of surface waters from any source;
 - c. **Mudflow**.
2. Collapse or subsidence of land along the shore of a lake or similar body of water as a result of erosion or

undermining caused by waves or currents of water exceeding anticipated cyclical levels that result in a **flood** as defined in **A.1.a.** above.

B. The following are the other key definitions we use in this **policy**:

1. **Act.** The National Flood Insurance Act of 1968, and any amendments to it, (42 U.S.C. 4001, et seq.).
2. **Actual Cash Value.** The cost to repair or replace an insured item of property at the time of loss, less the value of its physical depreciation.
3. **Additions and Extensions.** The additions, alterations, fixtures, installations, or other items of real property that pertain to the interior of your **unit**, **business**, or **building** at the **described location**.
4. **Association.** The entity made up of the **unit** owners or a cooperative of **business** owners or such other joint, common or cooperative ownership responsible for the maintenance and operation of:
 - a. Common elements owned in undivided shares by **unit** owners or **business** owners; and
 - b. Other real property in which the **unit** owners or **business** owners have use rights;where membership in the entity is a required condition of **unit** ownership or **business** ownership.
5. **Base Flood.** A **flood** having a one percent chance of being equaled or exceeded in any given year.
6. **Basement.** Any area of the **building**, including any sunken room or sunken portion of a room, having its floor below ground level (subgrade) on all sides.
7. **Building.** A structure, with two or more outside rigid walls and a fully secured roof, affixed to a permanent site used for your **business** activities; **Building** does not mean a gas or liquid storage tank or a recreational vehicle, park trailer, or other similar vehicle.
8. **Business.** Any employment, trade, occupation, profession, commercial enterprise, or farm operation including the raising or care of animals.
9. **Cancellation.** The ending of the insurance coverage provided by this **policy** before the expiration date.
10. **Condominium.** That form of ownership of real property in which each owner has an undivided interest in common elements.
11. **Declarations Page.** A computer-generated summary of information you provided in the application for insurance. The **Declarations Page** also describes the term of the **policy**, limits of coverage, and displays the premium and our name. The **Declarations Page** is a part of this flood insurance **policy**.
12. **Described Location.** The premises where the insured commercial **building(s)** or **business** contents are found. The **described location** is shown on the **Declarations Page**.
13. **Direct Physical Loss By or From Flood.** Loss or damage to insured property, directly caused by a **flood**. There must be evidence of physical changes to the insured property.
14. **Elevated Building.** A **building** that has no **basement** and that has its lowest elevated floor raised above ground level by foundation walls, shear walls, posts, piers, pilings, or columns.
15. **Emergency Program.** The initial phase of a community's participation in the **National Flood Insurance Program**. During this phase, only limited amounts of insurance are available under the **Act**.
16. **Mudflow.** A river of liquid and flowing mud on the surface of normally dry land areas, as when earth is carried by a current of water. Other earth movements, such as landslide, slope failure, or a saturated soil mass moving by liquidity down a slope, are not **mudflows**.
17. **National Flood Insurance Program (NFIP).** The program of flood insurance coverage and floodplain management administered under the **Act** and applicable Federal regulations in Title 44 of the Code of Federal Regulations, Sub. B.
18. **Policy.** The entire written contract between you and us. It includes:
 - a. This printed form;
 - b. The application and **Declarations Page**;
 - c. Any endorsement(s) that may be issued; and

d. Any renewal certificate indicating that coverage has been instituted for a new **policy** and new **policy** term.

Unless the application and the **Declarations Page** specifically apply this **policy** to multiple **buildings**, only one **building**, which you specifically described in the application, may be insured under this **policy**.

19. **Policy Fee.** A flat fee (when charged) that you must pay on each new or renewal **policy** to defray certain administrative expenses incurred in carrying out this Private Flood Insurance Program.
20. **Pollutants.** Substances that include, but are not limited to, any solid, liquid, gaseous, or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, and waste. "Waste" includes, but is not limited to, materials to be recycled, reconditioned, or reclaimed.
21. **Post-FIRM Building.** A **building** for which construction or substantial improvement occurred after December 31, 1974, or on or after the effective date of an initial Flood Insurance Rate Map (FIRM), whichever is later.
22. **Residential Condominium Building.** A **building** owned and administered as a **condominium**, containing one or more residential dwellings and in which at least 75 percent of the floor area is residential.
23. **Special Flood Hazard Area.** An area having special **flood**, or **mudflow**, and/or **flood**-related erosion hazards, and shown on a Flood Hazard Boundary Map or Flood Insurance Rate Map as Zone A, AO, A1-A30, AE, A99, AH, AR, AR/A, AR/AE, AR/AH, AR/AO, AR/A1-A30, V1-V30, VE, or V.
24. **Stock.** Merchandise held in storage or for sale, raw materials, and in-process or finished goods, including supplies used in their packing or shipping. **Stock** does not include any property not covered under Section IV Property Not Covered, except the following:
 - a. Parts and equipment for self-propelled vehicles;
 - b. Furnishings and equipment for watercraft;
 - c. Spas and hot-tubs, including their equipment; and
 - d. Swimming pool equipment.
25. **Unit.** An occupancy you own, lease or rent within a **condominium building**.
26. **Vacant.** A **building** that has no occupants or was not used in the normal course of your **business** for more than thirty (30) consecutive days immediately before a covered loss. A **building** currently under construction is deemed occupied unless construction was halted for more than ninety (90) consecutive days. A **condominium building** or an or apartment **building** is deemed **vacant** if more than 33% of all **units** or apartments had no occupants or tenants for more than thirty (30) consecutive days immediately before a covered loss.
27. **Valued Policy.** A **policy** in which the insured and the insurer agree on the value of the property insured, that value being payable in the event of a total loss. This Commercial Flood Insurance Policy is not a **valued policy**.

III. PROPERTY COVERED

A. COVERAGE A - BUILDING

We insure against **direct physical loss by or from flood** to:

1. The **building** described on the **Declarations Page** at the **described location**. If the **building** is a nonresidential **condominium building** and the named insured is the **Association**, Coverage **A** includes all **units** within the **building** and **additions and extensions** within the **units**, provided the **units** are owned in common by all **unit** owners.
2. **Additions and Extensions** attached to and in contact with the **building** by means of a rigid exterior wall, a solid load-bearing interior wall, a stairway, an elevated walkway, or a roof. At your option, **additions and extensions** connected by any of these methods may be separately insured.
3. The following fixtures, machinery, and equipment, which are covered under Coverage **A** only:
 - a. Awnings and canopies;
 - b. Blinds;

- c. Carpet permanently installed over unfinished flooring;
 - d. Central air conditioners;
 - e. Elevator equipment;
 - f. Fire extinguishing apparatus;
 - g. Fire sprinkler systems;
 - h. Walk-in freezers;
 - i. Furnaces;
 - j. Light fixtures;
 - k. Outdoor antennas and aerials attached to **buildings**;
 - l. Permanently installed cupboards, bookcases, paneling, and wallpaper;
 - m. Pumps and machinery for operating pumps;
 - n. Ventilating equipment;
 - o. Wall mirrors, permanently installed; and
 - p. In the **units** within the **building**, installed:
 - (1) Built-in dishwashers;
 - (2) Built-in microwave ovens;
 - (3) Garbage disposal units;
 - (4) Hot water heaters, including solar water heaters;
 - (5) Kitchen cabinets;
 - (6) Plumbing fixtures;
 - (7) Radiators;
 - (8) Ranges;
 - (9) Refrigerators; and
 - (10) Stoves.
4. Materials and supplies to be used for construction, alteration, or repair of the insured **building** while the materials and supplies are stored in a fully enclosed **building** at the **described location** or on an adjacent property.
5. A **building** under construction, alteration, or repair at the **described location**.
- a. If the structure is not yet walled or roofed as described in the definition for **building** (see **II.B. 7.**), then coverage applies:
 - (1) Only while such work is in progress; or
 - (2) If such work is halted, only for a period of up to ninety (90) continuous days thereafter.
 - b. However, coverage does not apply until the **building** is walled and roofed if the lowest floor, including the **basement** floor, of a non-**elevated building** or the lowest elevated floor of an **elevated building** is:
 - (1) Below the **base flood** elevation in Zones AH, AE, A1-A30, AR, AR/AE, AR/AH, AR/A1-A30, AR/A, AR/AO; or
 - (2) Below the **base flood** elevation adjusted to include the effect of wave action in Zones VE or V1-V30.

The lowest floor levels are based on the bottom of the lowest horizontal structural member of the floor in Zones VE or V1-V30 and the top of the floor in Zones AH, AE, A1-A30, AR, AR/AE, AR/AH, AR/A1-A30, AR/A, AR/AO.
6. Items of property in a **building** enclosure below the lowest elevated floor of an **elevated post-FIRM building** located in Zones A1-A30, AE, AH, AR, AR/A, AR/AE, AR/AH, AR/A1-A30, V1-V30, or VE, or in a **basement**, regardless of the zone. Coverage is limited to the following:
- a. Any of the following items, if installed in their functioning locations and, if necessary for operation, connected to a power source:
 - (1) Central air conditioners;

- (2) Cisterns and the water in them;
- (3) Drywall for walls and ceilings in a **basement** and the cost of labor to nail it, unfinished and unfloated and not taped, to the framing;
- (4) Electrical junction and circuit breaker boxes;
- (5) Electrical outlets and switches;
- (6) Elevators, dumbwaiters, and related equipment, except for related equipment installed below the **base flood** elevation after September 30, 1987;
- (7) Fuel tanks and the fuel in them;
- (8) Furnaces and hot water heaters;
- (9) Heat pumps;
- (10) Nonflammable insulation in a **basement**;
- (11) Pumps and tanks used in solar energy systems;
- (12) Stairways and staircases attached to the **building**, not separated from it by elevated walkways;
- (13) Sump pumps;
- (14) Water softeners and the chemicals in them, water filters, and faucets installed as an integral part of the plumbing system;
- (15) Well water tanks and pumps;
- (16) Required utility connections for any item in this list; and
- (17) Footings, foundations, posts, pilings, piers, or other foundation walls and anchorage systems required to support a **building**.

b. Clean-up.

B. COVERAGE B - CONTENTS

1. If you have purchased **business** contents coverage, we insure, subject to **B.2** through **B.9** below, against **direct physical loss by or from flood** to **business** contents inside a fully enclosed insured **building**. We also insure such **business** contents for forty-five (45) days while stored at a temporary location, as set forth in **III.C.2.b**. Property Removed to Safety.
2. When this **policy** covers **business** contents, it will insure your:
 - a. Furniture and fixtures;
 - b. Machinery and equipment;
 - c. **Stock**; and
 - d. Other contents owned by you and used in your **business**, subject to **IV. Property Not Covered**.
3. Coverage for **business** contents includes the following property, subject to **B.1** above, which is covered under Coverage **B** only:
 - a. Air conditioning units installed in the **building**;
 - b. Carpet, not permanently installed, over unfinished flooring;
 - c. Carpets over finished flooring;
 - d. Clothes washers and dryers;
 - e. "Cook-out" grills;
 - f. Food freezers, other than walk-in, and food in any freezer;
 - g. Outdoor equipment and furniture stored inside the insured **building**;
 - h. Ovens and the like; and
 - i. Portable microwave ovens and portable dishwashers.
4. Coverage for items of property in a **building** enclosure below the lowest elevated floor of an **elevated post-FIRM building** located in Zones A1- A30, AE, AH, AR, AR/A, AR/AE, AR/AH, AR/A1-A30, V1-V30, or VE, or in a **basement**, regardless of the zone, is limited to the following items, if installed in their functioning locations and, if necessary for operation, connected to a power source:
 - a. Air conditioning units, portable or window type;

- b. Clothes washers and dryers; and
- c. Food freezers, other than walk-in, and food in any freezer.

5. Special Limits. We will pay no more than \$2,500 for any loss to one or more of the following kinds of contents:

- a. Artwork, photographs, collectibles, or memorabilia, including but not limited to, porcelain or other figures, and sports cards;
- b. Rare books or autographed items;
- c. Jewelry, watches, precious and semiprecious stones, or articles of gold, silver, or platinum;
- d. Furs or any article containing fur which represents its principal value.

These Special Limits do not apply to **business** contents that are your **stock**.

6. We will pay only for the functional value of antiques, unless such antiques are **business** contents that are your **stock**.

7. If you are a tenant, you may apply up to 10 percent of the Coverage **B** limit to **additions and extensions**:

- a. Made a part of the **building** you occupy; and
- b. You acquired or made at your expense, even though you cannot legally remove them.

This coverage does not increase the amount of insurance that applies to insured **business** contents.

8. If you are a **unit** owner, you may apply up to 10 percent of the Coverage **B** limit to cover loss to interior:

- a. Walls;
- b. Floors; and
- c. Ceilings;

that are not covered under a **policy** issued to the **association** insuring the **condominium building**.

This coverage does not increase the amount of insurance that applies to **business** contents.

9. If you are a tenant, insured **business** contents must be inside a fully enclosed **building**.

COVERAGE C - OTHER COVERAGES

1. Debris Removal

- a. We will pay the expense to remove non-owned debris that is on or in insured property and debris of insured property anywhere.
- b. If you or members of your household perform the removal work, the value of your work will be based on the Federal minimum wage.
- c. We will pay no more than the applicable limit of liability or \$500,000, whichever is less.
- d. This coverage does not increase the Coverage **A** or Coverage **B** limit of liability.

2. Loss Avoidance Measures

a. Sandbags, Supplies, and Labor

- (1) We will pay up to \$1,000 for the costs you incur to protect the insured **building** from a **flood** or imminent danger of **flood**, for the following:

- (a) Your reasonable expenses to buy:
 - (i) Sandbags, including sand to fill them;

- (ii) Fill for temporary levees;
- (iii) Pumps; and
- (iv) Plastic sheeting and lumber used in connection with these items; and

(b) The value of work, at the Federal minimum wage, that you perform.

(2) This coverage for Sandbags, Supplies, and Labor only applies if damage to insured property by or from **flood** is imminent and the threat of **flood** damage is apparent enough to lead a person of common prudence to anticipate **flood** damage. One of the following must also occur:

- (a) A general and temporary condition of flooding in the area near the **described location** must occur, even if the **flood** does not reach the insured **building**; or
- (b) A legally authorized official must issue an evacuation order or other civil order for the community in which the insured **building** is located calling for measures to preserve life and property from the peril of **flood**.

This coverage does not increase the Coverage **A** or Coverage **B** limit of liability.

b. Property Removed to Safety

- (1) We will pay up to \$1,000 for the reasonable expenses you incur to move insured property to a place other than the **described location** that contains the property in order to protect it from **flood** or the imminent danger of **flood**. Reasonable expenses include the value of work, at the Federal minimum wage, that you or your employees perform.
- (2) If you move insured property to a location other than the **described location** that contains the property, in order to protect it from **flood** or the imminent danger of **flood**, we will cover such property while at that location for a period of forty-five (45) consecutive days from the date you begin to move it there. The **business** contents that are moved must be placed in a fully enclosed **building** or otherwise reasonably protected from the elements and outside of the **special flood hazard area**.

This coverage does not increase the Coverage **A** or Coverage **B** limit of liability.

3. Pollution Damage

We will pay for damage caused by **pollutants** to covered property if the discharge, seepage, migration, release, or escape of the **pollutants** is caused by or results from **flood**. The most we will pay under this coverage is \$10,000. This coverage does not increase the Coverage **A** or Coverage **B** limits of liability. Any payment under this provision when combined with all other payments for the same loss cannot exceed the replacement cost or **actual cash value**, as appropriate, of the covered property. This coverage does not include the testing for or the monitoring of **pollutants** unless required by law or ordinance.

4. Association Loss Assessments

a. If this **policy** insures a **unit**, we will pay your share of loss assessments charged against you by the **Association** in accordance with the **Association's** articles of association, declarations and your deed.

The assessment must be made as a result of **direct physical loss by or from flood** during the **policy** term, to the **building's** common elements.

b. We will not pay any loss assessment charged against you:

- (1) And the **Association** by any governmental body;
- (2) That results from a deductible under the insurance purchased by the **Association** insuring common elements;
- (3) That results from a loss to contents, including contents of an **Association building**;
- (4) That results from a loss sustained by the **Association** that was not reimbursed under a flood insurance **policy** written in the name of the **Association** under the **Act** because the **building** was not, at the time of loss, insured for an amount equal to the lesser of:
 - (a) 80% or more of its full replacement cost; or
 - (b) The maximum amount of insurance permitted under the **Act**.

c. We will pay no more than \$250,000 or the **Coverage A** limit of liability, whichever is less.

- d. Loss assessment coverage does not increase the Coverage **A** limit of liability.

D. COVERAGE D - INCREASED COST OF COMPLIANCE

1. General

This **policy** pays you to comply with a State or local floodplain management law or ordinance affecting repair or reconstruction of a structure suffering **flood** damage. Compliance activities eligible for payment are: elevation, floodproofing, relocation, or demolition (or any combination of these activities) of your structure.

2. Limit of Liability

We will pay you up to \$30,000 under this Coverage **D**, which only applies to **policies** with a Coverage **A** limit of liability listed on the **Declarations Page**. Our payment of claims under Coverage **D** is in addition to the amount of coverage you selected and which appears on the **Declarations Page** for Coverage **A**. However, the maximum you can collect under this **policy** for both Coverage **A** and Coverage **D** cannot exceed the maximum permitted under the **Act**. We do not charge a separate deductible for a claim under Coverage **D**.

3. Eligibility

- a. A structure covered under Coverage **A** sustaining a loss caused by a **flood** as defined by this **policy** must:
 - (1) Be a "repetitive loss structure." A repetitive loss structure is one that meets the following conditions:
 - (a) The structure has suffered **flood** damage on two occasions during a 10-year period which ends on the date of the second loss;
 - (b) The cost to repair the **flood** damage, on average, equaled or exceeded 25% of the market value of the structure at the time of each **flood** loss; or
 - (c) The State or community must have a cumulative, substantial damage provision or repetitive loss provision in its floodplain management law or ordinance being enforced against the structure; or
 - (2) Be a structure that has had **flood** damage in which the cost to repair equals or exceeds 50% of the market value of the structure at the time of the **flood**. The State or community must have a substantial damage provision in its floodplain management law or ordinance being enforced against the structure.
- b. This Coverage **D** pays you to comply with State or local floodplain management laws or ordinances that meet the minimum standards of the **NFIP** found in the Code of Federal Regulations at 44 CFR 60.3. We pay for compliance activities that exceed those standards under these conditions:
 - (1) Coverage **D** Eligibility provisions listed **a.**, above.
 - (2) Elevation or floodproofing in any risk zone to preliminary or advisory **base flood** elevations provided by FEMA which the State or local government has adopted and is enforcing for **flood**-damaged structures in such areas. This includes compliance activities in B, C, X, or D zones which are being changed to zones with **base flood** elevations. This also includes compliance activities in zones where **base flood** elevations are being increased, and a **flood**-damaged structure must comply with the higher advisory **base flood** elevation. Increased Cost of Compliance coverage does not apply to situations in B, C, X, or D zones where the community has derived its own elevations and is enforcing elevation or floodproofing requirements for **flood**-damaged structures to elevations derived solely by the community.
 - (3) Elevation or floodproofing above the **base flood** elevation to meet State or local "freeboard" requirements, i.e., that a structure must be elevated above the **base flood** elevation.
- c. This coverage will also pay for the incremental cost, after demolition or relocation, of elevating or floodproofing a structure during its rebuilding at the same or another site to meet State or local floodplain management laws or ordinances, subject to Exclusion **D.5.f.** below.
- d. This coverage will also pay to bring a **flood**-damaged structure into compliance with State or local floodplain management laws or ordinances even if the structure had received a variance before the present loss from the applicable floodplain management requirements.

4. Conditions

- a. When a structure covered under Coverage **A** - Building Property sustains a loss caused by a **flood**, our payment for the loss under this Coverage **D** will be for the increased cost to elevate, floodproof, relocate, or demolish (or any combination of these activities) caused by the enforcement of current State or local floodplain management ordinances or laws. Our payment for eligible demolition activities will be for the cost to demolish and clear the site of the **building** debris or a

portion thereof caused by the enforcement of current State or local floodplain management ordinances or laws. Eligible activities for the cost of clearing the site will include those necessary to discontinue utility service to the site and ensure proper abandonment of on-site utilities.

- b. When the **building** is repaired or rebuilt, it must be intended for the same occupancy as the present **building** unless otherwise required by current floodplain management ordinances or laws.

5. Exclusions

Under this Coverage **D** Increased Cost of Compliance we will not pay for:

- a. The costs to make property not covered under this **policy** comply with any floodplain management law or ordinance.
- b. The cost associated with enforcement of any ordinance or law that requires any insured or others to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of **pollutants**.
- c. The loss in value to any insured **building** or other structure due to the requirements of any ordinance or law.
- d. The loss in residual value of the undamaged portion of a **building** demolished as a consequence of enforcement of any State or local floodplain management law or ordinance.
- e. Any Increased Cost of Compliance under this Coverage **D** not completed within two (2) years of the **flood** loss.
- f. Loss due to any ordinance or law that you were required to comply with before the current loss.

6. Other Provisions

All other exclusions, conditions and provisions of this **policy** apply.

E. COVERAGE E - BUSINESS INCOME AND EXTRA EXPENSE

1. General

If you have purchased Business Income and Extra Expense coverage, and a separate Limit is stated on the **Declarations Page**, then this **policy** provides coverage when a **flood** causes a disruption to your **business** operations, subject to the terms and conditions of **policy** and this Coverage **E**.

2. Coverage

- a. We will pay for the actual loss of "Business Income" you sustain due to the necessary "suspension" of your "operations" during the "period of restoration" caused by **direct physical loss by or from flood** to the insured property at the **described location**.
- b. We will also pay any "Extra Expense" you incur:
 - (1) To continue your normal "operations" at the **described location**;
 - (2) To continue your normal "operations" at a replacement or temporary location, including:
 - (a) Relocation expenses; and
 - (b) Costs to equip or operate the replacement or temporary location; or
 - (3) To minimize the "suspension" of your normal "operations" if you cannot continue them.
 - (4) "Extra Expense" coverage does not increase the limit of liability for Coverage **E** listed in the Declarations page.

3. Limit of Insurance

The most we will pay for loss under this Coverage **E** is the limit of liability listed on the **Declarations Page**.

4. Additional Definitions

The following Additional Definitions apply to this Coverage **E**:

- a. "Business Income" means the:
 - (1) Net Income (Net Profit or Loss before income taxes), including "rental income", that would have been earned or incurred; and
 - (2) Continuing normal operating expenses incurred, including payroll.
 - b. "Extra Expense" means the reasonable and necessary expenses you incur during the "period of restoration" that you would not have incurred if there had been no **direct physical loss by or from flood** to the insured property at the **described location**.
 - c. "Operations" means your usual and customary **business** activities normally occurring at the **described location**.
 - d. "Period of Restoration" means that period of time that:
 - (1) Begins fifteen (15) days after a **direct physical loss by or from flood** to insured property; and
 - (2) Ends on the earlier of:
 - (a) The date when the covered property at the **described location** should have been repaired, rebuilt or replaced, using due diligence, reasonable speed, and similar quality; or
 - (b) The date when your **business** activities resumed, or should have resumed, at a new permanent location.
 - (3) Does not include any increased period required due to the enforcement of any ordinance, law or civil authority restrictions after a covered event, caused directly or indirectly by the event or damage from the event, that:
 - (a) Regulates the construction, use or repair, or requires the tearing down, of any property; or (b) **Requires** any insured or others to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of **pollutants**.
- Repair or replacement of the property at the **described location** must begin as soon as practicable. The "period of restoration" does not include any increased period required due to failure to begin repair or replacement of the insured property at the **described location** within 72 hours after the **direct physical loss by or from flood**.
- The expiration date of this **policy** will not cut short the "period of restoration."
- e. "Rental income" means net income (Net Profit or Loss before income taxes) that would have been earned or incurred from tenant occupancy of the premises described in the **Declarations Page** as furnished and equipped by **you**.
 - f. "Suspension" means the slowdown or cessation of your **business** activities. The "suspension" must be caused by **direct physical loss by or from flood** to insured property at the **described location** listed in the **Declarations Page**, for which a Business Income and Extra Expense Limit is shown.

IV. PROPERTY NOT COVERED

We do not cover any of the following:

- 1. Contents not inside a **building**;
- 2. A **building**, and contents in it, located entirely in, on, or over water or seaward of mean high tide;
- 3. Open structures, including a **building** used as a boathouse or any structure or **building** into which boats are floated, and contents located in, on, or over water;
- 4. Recreational vehicles, travel trailers, motor homes, and mobile homes, even if affixed to a permanent foundation;

5. Self-propelled vehicles or machines, including their parts and equipment. However, we do cover self-propelled vehicles or machines not licensed for use on public roads that are:
 - a. Used mainly to service the **described location**, or
 - b. Designed and used to assist handicapped persons,while the vehicles or machines are inside a **building** at the **described location**;
 6. Land, land values, lawns, trees, shrubs, plants, growing crops, or animals;
 7. Accounts, bills, coins, currency, deeds, evidences of debt, medals, money, scrip, stored value cards, postage stamps, securities, bullion, manuscripts, or other valuable papers;
 8. Underground structures and equipment, including wells, septic tanks, and septic systems;
 9. Those portions of walks, walkways, decks, driveways, patios and other surfaces, all whether protected by a roof or not, located outside the perimeter, exterior walls of the insured **building** or the **building** in which the insured **unit** is located;
 10. Containers, including related equipment, such as, but not limited to, tanks containing gases or liquids;
 11. **Buildings** or **units** and all their contents if more than 49% of the **actual cash value** of the **building** or **unit** is below ground, unless the lowest level is at or above the **base flood** elevation and is below ground by reason of earth having been used as insulation material in conjunction with energy efficient building techniques;
 12. Fences, retaining walls, seawalls, bulkheads, wharves, piers, bridges, and docks;
 13. Aircraft or watercraft, or their furnishings and equipment;
 14. Hot tubs and spas that are not bathroom fixtures, and swimming pools, and their equipment such as, but not limited to, heaters, filters, pumps, and pipes, wherever located;
 15. Property not eligible for **flood** insurance pursuant to the provisions of the Coastal Barrier Resources Act and the Coastal Barrier Improvement Act and amendments to these Acts;
 16. Contents you own in common with other **unit** owners comprising the membership of an **Association**; or
 17. A **unit** in a **residential condominium building**.
-

V. EXCLUSIONS

- A. We only provide coverage for **direct physical loss by or from flood**, which means that we do not pay you for:
 1. Loss of revenue or profits of any kind; except as provided under Coverage **E** - Business Income and Extra Expense, if such coverage was purchased and listed on the **Declarations Page**;
 2. Loss of use of, or access to, the insured property or **described location**;
 3. Loss from interruption of **business** or production; except as provided under Coverage **E** - Business Income and Extra Expense, if such coverage was purchased and listed on the **Declarations Page**;
 4. Any additional living expenses incurred while the insured **building** is being repaired or is unable to be occupied for any reason;
 5. The cost of complying with any ordinance or law requiring or regulating the construction, demolition, remodeling, renovation, or repair of property, including removal of any resulting debris. This exclusion does not apply to any eligible activities we describe in Coverage **D** - Increased Cost of Compliance; or
 6. Any other economic loss you suffer.
- B. We do not insure a loss directly or indirectly caused by a **flood** that is already in progress at the time and date:
 1. The **policy** term begins; or
 2. Coverage is added at your request.

C. We do not insure for loss to property caused directly by earth movement even if the earth movement is caused by **flood**. Some examples of earth movement that we do not cover are:

1. Earthquake;
2. Landslide;
3. Land subsidence;
4. Sinkholes;
5. Destabilization or movement of land that results from accumulation of water in subsurface land area; or
6. Gradual erosion.

We do, however, pay for losses from **mudflow** and land subsidence as a result of erosion that are specifically covered under our definition of **flood** (see **II.A.1.c.** and **II.A.2.**).

D. We do not insure for **direct physical loss** caused directly or indirectly by any of the following:

1. The pressure or weight of ice;
 2. Freezing or thawing;
 3. Rain, snow, sleet, hail, or water spray;
 4. Water, moisture, mildew, or mold damage that results primarily from any condition:
 - a. Substantially confined to the insured **building**; or
 - b. That is within your control, including but not limited to:
 - (1) Design, structural, or mechanical defects;
 - (2) Failure, stoppage, or breakage of water or sewer lines, drains, pumps, fixtures, or equipment; or
 - (3) Failure to inspect and maintain the property after a **flood** recedes;
 5. Water or waterborne material that:
 - a. Backs up through sewers or drains;
 - b. Discharges or overflows from a sump, sump pump, or related equipment; or
 - c. Seeps or leaks on or through the covered property;

unless there is a **flood** in the area and the **flood** is the proximate cause of the sewer or drain backup, sump pump discharge or overflow, or seepage of water;
 6. The pressure or weight of water unless there is a **flood** in the area and the **flood** is the proximate cause of the damage from the pressure or weight of water;
 7. Power, heating, or cooling failure unless the failure results from **direct physical loss by or from flood** to power, heating, or cooling equipment situated on the **described location**;
 8. Theft, fire, explosion, wind, or windstorm;
 9. Anything you or your agent do or conspire to do to cause loss by **flood** deliberately;
 10. Alteration of the insured property that significantly increases the risk of **flood**ing.
- E. We do not insure for loss to any **building** or contents located on land leased from the Federal Government, arising from or incident to the flooding of the land by the Federal Government, where the lease expressly holds the Federal Government harmless under flood insurance issued under any Federal Government program.
- F. We do not pay for the testing for or monitoring of **pollutants** unless required by law or ordinance.

VI. DEDUCTIBLES

- A. When a loss is covered under this **policy**, we will pay only that part of the loss that exceeds your deductible amount, subject to the limit of liability that applies. The deductible amount is shown on the **Declarations Page**.

However, when a **building** under construction, alteration, or repair does not have at least two rigid exterior walls and a fully secured roof at the time of loss, your deductible amount will be two times the deductible that would otherwise apply to a completed **building**.

- B. In each loss from **flood**, separate deductibles apply to Coverage **A** - Building and Coverage **B** - Contents, insured by this **policy**.
- C. The deductible does not apply to:
1. **III.C.2. Loss Avoidance Measures**; or
 3. **III.D. Increased Cost of Compliance**.

VII. GENERAL CONDITIONS

A. Pair and Set Clause

In case of loss to an article that is part of a pair or set, we will have the option of paying you:

1. An amount equal to the cost of replacing the lost, damaged, or destroyed article, minus its depreciation; or
2. The amount that represents the fair proportion of the total value of the pair or set that the lost, damaged, or destroyed article bears to the pair or set.

B. Concealment or Fraud and Policy Voidance

1. With respect to all insureds under this **policy**, this **policy**:
 - a. Is void;
 - b. Has no legal force or effect;
 - c. Cannot be renewed; and
 - d. Cannot be replaced by a new **policy**, if, before or after a loss, you or any other insured or your agent have at any time:
 - (1) Intentionally concealed or misrepresented any material fact or circumstance;
 - (2) Engaged in fraudulent conduct; or
 - (3) Made false statements;relating to this **policy** or any other insurance issued by us.
2. This **policy** will be void as of the date the wrongful acts described in **B.1.** above were committed.
3. Fines, civil penalties, and imprisonment under applicable Federal laws may also apply to the acts of fraud or concealment described above.
4. This **policy** is also void for reasons other than fraud, misrepresentation, or wrongful act.

C. Other Insurance

1. If a loss covered by this **policy** is also covered by other insurance that includes **flood** coverage, we will not pay more than the amount of insurance you are entitled to for lost, damaged, or destroyed property insured under this **policy** subject to the following:

- a. We will pay only the proportion of the loss that the amount of insurance that applies under this **policy** bears to the total amount of insurance covering the loss, unless **C.1.b.** or **c.** immediately below applies.
 - b. If the other policy was designed to provide excess coverage and has a provision stating that it is excess insurance, this **policy** will be primary.
 - c. This **policy** will be primary (but subject to its own deductible) up to the deductible in the other **flood** policy (except another policy as described in **C.1.b.** above). When the other deductible amount is reached, this **policy** will participate in the same proportion that the amount of insurance under this **policy** bears to the total amount of both policies, for the remainder of the loss.
2. If there is other insurance in the name of your **Association** covering the same property covered by this **policy**, then this **policy** will be excess over the other insurance.

D. Amendments, Waivers, Assignment

This **policy** cannot be changed nor can any of its provisions be waived without our express written consent. No action that we take under the terms of this **policy** constitutes a waiver of any of our rights. You may not assign this **policy**.

E. Cancellation of Policy by You

You may cancel this **policy** at any time by returning it to us or notifying us in writing of the future date that the **cancellation** is to take effect. If you cancel this **policy**, you will be entitled to a pro-rata refund of the premium, except in the event of a claim as then this **policy** will be fully earned.

F. Non-renewal or Cancellation of the Policy by Us

We may elect to non-renew or to cancel this **policy** by sending written notice to your mailing address shown on the **Declarations Page**, at least forty-five (45) days prior to the effective date of the non-renewal or **cancellation**. Our written notice to you shall indicate the reason or reasons for non-renewal or **cancellation** and a copy will be sent to any known mortgagee. When **cancellation** is for nonpayment of premium, we will cancel this **policy** within the shortest notice period allowed by law.

G. Earned Premium

The total annual premium will be fully earned in the event of a claim which is likely to involve this **policy** or a loss which may be covered by this **policy**.

H. Policy Renewal

1. This **policy** will expire at 12:01 a.m. on the last day of the **policy** term.
2. We may offer to renew this **policy**, at the premiums and under the **policy** provisions in effect on the date of renewal. If we elect to renew this **policy**, a Notice of Expiration and Renewal Offer will be provided, along with any changes in the **policy** provisions or amounts of coverage at least forty-five (45) days prior to the expiration of this **policy**. If you reject our offer, this **policy** will automatically terminate at the end of the current **policy** period. Failure to pay the required renewal premium in full on or before the due date means you have rejected our offer.
3. In connection with the renewal of this **policy**, we may ask you during the **policy** term to recertify, on a Recertification Questionnaire we will provide to you, the rating information used to rate your most recent application for or renewal of insurance.

I. Conditions Suspending or Restricting Insurance

We are not liable for loss that occurs while there is a hazard that is increased by any means within your control or knowledge.

J. Requirements in Case of Loss

In case of a **flood** loss to insured property, you must:

1. Give prompt written notice to us;
2. As soon as reasonably possible, separate the damaged and undamaged property, putting it in the best possible order so that we may examine it;
3. Prepare an inventory of all damaged **building** and contents showing the quantity, description, **actual cash value**, and amount of loss. Attach all bills, receipts, and related documents;

4. Within sixty (60) days after the loss, send us a proof of loss, which is your statement of the amount you are claiming under the **policy** signed and sworn to by you, and which furnishes us with the following information:
 - a. The date and time of loss;
 - b. A brief explanation of how the loss happened;
 - c. Your interest (for example, "owner") and the interest, if any, of others in the damaged property;
 - d. Details of any other insurance that may cover the loss;
 - e. Changes in title or occupancy of the covered property during the term of the **policy**;
 - f. Specifications of damaged **buildings** and detailed repair estimates;
 - g. Names of mortgagees or anyone else having a lien, charge, or claim against the insured property;
 - h. Details about who occupied any insured **building** at the time of loss and for what purpose; and
 - i. The inventory of damaged contents described in **J.3.** above.
5. In completing the proof of loss, you must use your own judgment concerning the amount of loss and justify that amount.
6. You must cooperate with the adjuster or representative in the investigation of the claim.
7. The insurance adjuster whom we hire to investigate your claim may furnish you with a proof of loss form, and she or he may help you complete it. However, this is a matter of courtesy only, and you must still send us a proof of loss within sixty (60) days after the loss even if the adjuster does not furnish the form or help you complete it.
8. We have not authorized the adjuster to approve or disapprove claims or to tell you whether we will approve your claim.
9. At our option, we may accept the adjuster's report of the loss instead of your proof of loss. The adjuster's report will include information about your loss and the damages you sustained. You must sign the adjuster's report. At our option, we may require you to swear to the report.

K. Our Options After a Loss

Options we may, in our sole discretion, exercise after loss include the following:

1. At such reasonable times and places that we may designate, you must:
 - a. Show us or our representative the damaged property;
 - b. Submit to examination under oath, while not in the presence of another insured, and sign the same; and
 - c. Permit us to examine and make extracts and copies of:
 - (1) Any policies of property insurance insuring you against loss and the deed establishing your ownership of the insured real property;
 - (2) **Association** documents including the Declarations of the **condominium**, its Articles of Association or Incorporation, Bylaws, rules and regulations, and other relevant documents if you are a **unit** owner in an **association building**; and
 - (3) All books of accounts, bills, invoices and other vouchers, or certified copies pertaining to the damaged property if the originals are lost.
2. We may request, in writing, that you furnish us with a complete inventory of the lost, damaged, or destroyed property, including:
 - a. Quantities and costs;
 - b. **Actual cash values** or replacement cost (whichever is appropriate);
 - c. Amounts of loss claimed;
 - d. Any written plans and specifications for repair of the damaged property that you can reasonably make available to us; and
 - e. Evidence that prior **flood** damage has been repaired.
3. If we give you written notice within thirty (30) days after we receive your signed, sworn proof of loss, we may:
 - a. Repair, rebuild, or replace any part of the lost, damaged, or destroyed property with material or property of like kind and quality or its functional equivalent; and

- b. Take all or any part of the damaged property at the value that we agree upon or its appraised value.

L. No Benefit to Bailee

No person or organization, other than you, having custody of covered property will benefit from this insurance.

M. Loss Payment

1. We will adjust all losses with you. We will pay you unless some other person or entity is named in the **policy** or is legally entitled to receive payment. Loss will be payable sixty (60) days after we receive your proof of loss (or within ninety (90) days after the insurance adjuster files the adjuster's report signed and sworn to by you in lieu of a proof of loss) and:
 - a. We reach an agreement with you;
 - b. There is an entry of a final judgment; or
 - b. There is a filing of an appraisal award with us, as provided in **VII.P.**
2. If we reject your proof of loss in whole or in part you may:
 - a. Accept our denial of your claim;
 - b. Exercise your rights under this **policy**; or
 - c. File an amended proof of loss, as long as it is filed within sixty (60) days of the date of the loss.

N. Abandonment

You may not abandon to us damaged or undamaged property insured under this **policy**.

O. Salvage

We may permit you to keep damaged property insured under this **policy** after a loss, and we will reduce the amount of the loss proceeds payable to you under the **policy** by the value of the salvage.

P. Appraisal

If you and we fail to agree on the **actual cash value** or, if applicable, replacement cost of your damaged property to settle upon the amount of loss, then either may demand an appraisal of the loss. In this event, you and we will each choose a competent and impartial appraiser within twenty (20) days after receiving a written request from the other. The two appraisers will choose an umpire. If they cannot agree upon an umpire within fifteen (15) days, you or we may request that the choice be made by a judge of a court of record in the State where the covered property is located. The appraisers will separately state the **actual cash value**, the replacement cost, and the amount of loss to each item. If the appraisers submit a written report of an agreement to us, the amount agreed upon will be the amount of loss. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will set the amount of **actual cash value** and loss, or if it applies, the replacement cost and loss.

Each party will:

1. Pay its own appraiser; and
2. Bear the other expenses of the appraisal and umpire equally.

Q. Mortgage Clause

The word "mortgagee" includes trustee.

Any loss payable under Coverage **A - Building Property** will be paid to any mortgagee of whom we have actual notice as well as any other mortgagee or loss payee determined to exist at the time of loss, and you, as interests appear. If more than one mortgagee is named, the order of payment will be the same as the order of precedence of the mortgages.

If we deny your claim, the denial will not apply to a valid claim of the mortgagee, if the mortgagee:

1. Notifies us of any change in the ownership or occupancy, or substantial change in risk of which the mortgagee is aware;
2. Pays any premium due under this **policy** on demand if you have neglected to pay the premium; and
3. Submits a signed, sworn proof of loss within sixty (60) days after receiving notice from us of your failure to do so. All of the terms of this **policy** apply to the mortgagee.

The mortgagee has the right to receive loss payment even if the mortgagee has started foreclosure or similar action on the **building**.

If we decide to cancel or non-renew this **policy**, we will notify the mortgagee at least forty-five (45) days before the

cancellation or non- renewal takes effect.

If we pay the mortgagee for any loss and deny payment to you, we are subrogated to all the rights of the mortgagee granted under the mortgage on the property. Subrogation will not impair the right of the mortgagee to recover the full amount of the mortgagee's claim.

R. Suit Against Us

You may not sue us to recover money under this **policy** unless you have complied with all the requirements of the **policy**. If you do sue, you must start the suit within one (1) year after the date of the written denial of all or part of the claim, and you must file the suit in the United States District Court of the district in which the covered property was located at the time of loss. This requirement applies to any claim that you may have under this **policy** and to any dispute that you may have arising out of the handling of any claim under the **policy**.

S. Subrogation

Whenever we make a payment for a loss under this **policy**, we are subrogated to your right to recover for that loss from any other person. That means that your right to recover for a loss that was partly or totally caused by someone else is automatically transferred to us, to the extent that we have paid you for the loss. We may require you to acknowledge this transfer in writing. After the loss, you may not give up our right to recover this money or do anything that would prevent us from recovering it. If you make any claim against any person who caused your loss and recover any money, you must pay us back first before you may keep any of that money.

T. Continuous Lake Flooding

1. If an insured **building** has been **flooded** by rising lake waters continuously for ninety (90) days or more and it appears reasonably certain that a continuation of this **flooded** will result in a covered loss to the insured **building** equal to or greater than the **building policy** limits plus the deductible or the maximum payable under the **policy** for any one **building** loss, we will pay you the lesser of these two amounts without waiting for the further damage to occur if you sign a release agreeing:

- a. To make no further claim under this **policy**;
- b. Not to seek renewal of this **policy**;
- c. Not to apply for any flood insurance underwritten by us for property at the **described location**; and
- d. Not to seek a premium refund for current or prior terms.

If the **policy** term ends before the insured **building** has been **flooded** continuously for ninety (90) days, the provisions of this paragraph **T.1.** will apply when the insured **building** suffers a covered loss before the **policy** term ends.

2. If your insured **building** is subject to continuous lake flooding from a closed basin lake, you may elect to file a claim under either paragraph **T.1.** above or **T.2.** (A "closed basin lake" is a natural lake from which water leaves primarily through evaporation and whose surface area now exceeds or has exceeded 1 square mile at any time in the recorded past. Most of the nation's closed basin lakes are in the western half of the United States, where annual evaporation exceeds annual precipitation and where lake levels and surface areas are subject to considerable fluctuation due to wide variations in the climate. These lakes may overtop their basins on rare occasions.) Under this paragraph **T.2.** we will pay your claim as if the **building** is a total loss even though it has not been continuously inundated for ninety (90) days, subject to the following conditions:

- a. Lake **flood** waters must damage or imminently threaten to damage your **building**.
- b. Before approval of your claim, you must:
 - (1) Agree to a claim payment that reflects your buying back the salvage on a negotiated basis;
 - (2) Comply with paragraphs **T.1.a.** through **T.1.d.** above.
- c. Within ninety (90) days of approval of your claim, you must move your **building** to a new location outside the ASC. You will receive an additional thirty (30) days to move if you show there is sufficient reason to extend the time.
- d. Before the final payment of your claim, you must acquire an elevation certificate and a floodplain development permit from the local floodplain administrator for the new location of your **building**.
- e. Before the approval of your claim, the community having jurisdiction over your **building** must:
 - (1) Adopt a permanent land use ordinance, or a temporary moratorium for a period not to exceed six (6) months to be followed immediately by a permanent land use ordinance, that is consistent with the provisions specified in the

easement required in paragraph **T.2.b.** above.

- (2) Agree to declare and report any violations of this ordinance to FEMA so that, under Section 1316 of the **Act**, flood insurance to the **building** can be denied; and
 - (3) Agree to maintain as deed-restricted, for purposes compatible with open space or agricultural or recreational use only, any affected property the community acquires an interest in. These deed restrictions must be consistent with the provisions of paragraph **T.2.b.** above, except that, even if a certified project protects the property, the land use restrictions continue to apply if the property was acquired under the Hazard Mitigation Grant Program or the Flood Mitigation Assistance Program. If a non-profit land trust organization receives the property as a donation, that organization must maintain the property as deed-restricted, consistent with the provisions of paragraph **T.2.b.** above.
- f. Before the approval of your claim, the affected State must take all action set forth in FEMA's "Policy Guidance for Closed Basin Lakes."
- g. You must have **NFIP** compliant **flood** insurance coverage continuously in effect from a date established by FEMA until you file a claim under paragraph **T.2.** If a subsequent owner buys **NFIP** compliant insurance that goes into effect within sixty (60) days of the date of transfer of title, any gap in coverage during that 60-day period will not be a violation of this continuous coverage requirement. For the purpose of honoring a claim under this paragraph **T.2.**, we will not consider to be in effect any increased coverage that became effective after the date established by FEMA. The exception to this is any increased coverage in the amount suggested by your insurer as an inflation adjustment.
- h. This paragraph **T.2.** will be in effect for a community when the FEMA Regional Administrator for the affected region provides to the community, in writing, the following:
- (1) Confirmation that the community and the State are in compliance with the conditions in paragraphs **T.2.e.** and **T.2.f.** above; and
 - (2) The date by which you must have flood insurance in effect.

U. Duplicate Policies Not Allowed

1. We will not insure your property under more than one **policy**.

If we find that the duplication was not knowingly created, we will give you written notice. The notice will advise you that you may choose one of several options under the following procedures:

- a. If you choose to keep in effect the **policy** with the earlier effective date, you may also choose to add the coverage limits of the later **policy** to the limits of the earlier **policy**. The change will become effective as of the effective date of the later **policy**.
- b. If you choose to keep in effect the **policy** with the later effective date, you may also choose to add the coverage limits of the earlier **policy** to the limits of the later **policy**. The change will be effective as of the effective date of the later **policy**.

In either case, you must pay the pro rata premium for the increased coverage limits within thirty (30) days of the written notice. In no event will the resulting coverage limits exceed our permissible limits of coverage or your insurable interest, whichever is less.

We will make a refund to you, according to applicable **NFIP** rules, of the premium for the **policy** not being kept in effect.

2. Your option under Condition **U. Duplicate Policies Not Allowed** to elect which **policy** to keep in effect does not apply when duplicates have been knowingly created. Losses occurring under such circumstances will be adjusted according to the terms and conditions of the earlier **policy**. The **policy** with the later effective date must be canceled.

V. Loss Settlement

1. Introduction

This policy provides two methods of settling losses: Replacement Cost and **Actual Cash Value**. Each method is explained below.

- a. Replacement Cost loss settlement, described in **V.2.** below, applies to covered property that meets the definition of a commercial **building** and all covered **business** contents contained therein.
- b. **Actual Cash Value** loss settlement applies to covered property not subject to replacement cost settlement and to the property listed in **V.3.** below.

2. Replacement Cost Loss Settlement

The following loss settlement conditions apply to covered property described in **V.1.a.** above:

- a. We will pay to repair or replace the damaged covered property after application of the deductible and without deduction for depreciation, but not more than the least of the following amounts:
 - (1) The limit of liability applicable to the damaged covered property, as shown on the **Declarations Page**;
 - (2) The replacement cost of that part of the damaged covered property, with materials of like kind and quality, and for like use; or
 - (3) The necessary amount actually spent to repair or replace the damaged part of the covered property for like use.
- b. If the **building** is rebuilt at a new location, the cost described above is limited to the cost that would have been incurred if the **building** had been rebuilt at its former location.
- c. When the full cost of repair or replacement is more than \$1,000 or more than 5 percent of the whole amount of insurance that applies to the commercial **building** and covered **business** contents, we will not be liable for any loss under **V.2.a.**, above, or **V.3.a.**, below, unless and until actual repair or replacement is completed.
- d. You may disregard the replacement cost conditions above and make claim under this **policy** for loss to any covered property on an **actual cash value** basis. You may then make claim for any additional liability according to **V.2.a.**, **b.**, and **c.** above, provided you notify us of your intent to do so within one hundred eighty (180) days after the date of loss.

3. Actual Cash Value Loss Settlement

The types of property noted below are subject to **actual cash value** loss settlement.

- a. We will pay the **actual cash value** of the damaged part of the following types of property, until such time as you actually repair or replace the damaged covered property, with materials of like kind and quality, and for like use, but not more than the amount of insurance that applies to that property:
 - (a) Other detached permanent structures, appurtenant to the **building**.
 - (b) **Business** contents contained within the **building**.
 - (c) Appliances, carpets, and carpet pads installed within the **building**.

Within one hundred eighty (180) days of our **actual cash value** payment to you, you may make a claim for reimbursement of the additional cost you actually spend to repair or replace the damaged covered property, with materials of like kind and quality, and for like use. You must present verifiable payment receipts for each item of covered property.

- b. Outdoor awnings, outdoor antennas or aerials of any type, and other outdoor equipment.
- c. Any property covered under this **policy** that is abandoned after a loss and remains as debris anywhere on the **described location**.
- d. A commercial **building** that is **vacant** and the covered **business** contents contained within it.

VIII. LIBERALIZATION CLAUSE

If we make a change that broadens your coverage under this edition of our **policy**, but does not require any additional premium, then that change will automatically apply to your insurance as of the date we implement the change, provided that this implementation date falls within sixty (60) days before or during the **policy** term stated on the **Declarations Page**.

IX. WHAT LAW GOVERNS

This **policy** and all disputes arising from the handling of any claim under the **policy** are governed exclusively by state insurance law, the **Act**, and Federal common law, as each is applicable, based on the location of your property.

SEVERAL LIABILITY CLAUSE

PLEASE NOTE – This notice contains important information. PLEASE READ CAREFULLY

The liability of an insurer under this contract is several and not joint with other insurers party to this contract. An insurer is liable only for the proportion of liability it has underwritten. An insurer is not jointly liable for the proportion of liability underwritten by any other insurer. Nor is an insurer otherwise responsible for any liability of any other insurer that may underwrite this contract.

The proportion of liability under this contract underwritten by an insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown in this contract.

In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.

Although reference is made at various points in this clause to "this contract" in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

07/03/08

LMA5096 (Combined Certificate)

Sanctions Limitation Clause

No (re)insurer shall be deemed to provide cover and no (re)insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations' resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

LMA3100A

05 October 2023

HDI Global Specialty SE
PRIVACY NOTICE

HDI Global Specialty SE (HDI Global Specialty) is an insurance company acting through its UK Branch which is situated at 20 Gracechurch Street, London, EC3V 0BG, United Kingdom . It is a Data Controller as defined under the UK General Data Protection Regulation and UK Data Protection Act 2018 ('GDPR').

HDI Global Specialty's notice on how it may collect and deal with your data and how it may be dealt with may be found at the following link: <https://www.hdi.global/legal/privacy/>.

PROPERTY CYBER ENDORSEMENT

- 1 Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy excludes any:
 - 1.1 Cyber Loss, unless subject to the provisions of paragraph 2;
regardless of any other cause or event contributing concurrently or in any other sequence thereto.
- 2 Subject to all the terms, conditions, limitations and exclusions of this Policy or any endorsement thereto, this Policy covers physical loss or physical damage to property insured under this Policy caused by a Flood (as defined in the policy form attached hereto) which directly results from a Cyber Incident or Cyber Act.
- 3 In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.
- 4 This endorsement supersedes and, if in conflict with any other wording in the Policy or any endorsement thereto having a bearing on Cyber Loss, replaces that wording.

Definitions

- 5 Cyber Loss means any loss, damage, liability, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any Cyber Act or Cyber Incident including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any Cyber Act or Cyber Incident.
- 6 Cyber Act means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any Computer System.
- 7 Cyber Incident means:
 - 7.1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any Computer System; or
 - 7.2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any Computer System.
- 8 Computer System means:
 - 8.1 any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility,

owned or operated by the Insured or any other party.

SERVICE OF SUIT CLAUSE (U.S.A.)

It is agreed that in the event of the failure of the Insurers hereon to pay any amount claimed to be due hereunder, the Insurers hereon, at the request of the Insured (or Reinsured), will submit to the jurisdiction of a Court of competent jurisdiction within the United States. Nothing in this Clause constitutes or should be understood to constitute a waiver of Insurers' rights to commence an action in any Court of competent jurisdiction in the United States, to remove an action to a United States District Court, or to seek a transfer of a case to another Court as permitted by the laws of the United States or of any State in the United States.

It is further agreed that service of process in such suit may be made upon **Underwriters at Lloyd's** by notifying:

In Respects of Risks in All States:

**Lloyd's America, Inc.
Attn: Legal Department
280 Park Avenue
East Tower, 25th Floor
New York, NY 10017 USA**

And It is further agreed that service of process in such suit may be made upon **Hamilton Insurance DAC** and **Great Lakes Insurance SE** by notifying:

In Respects of California Risks:

**Foley & Lardner LLP
555 California Street, Suite 1700
San Francisco, CA 94104-1520 USA**

In Respects of Risks in All Other States:

**Mendes and Mount
750 Seventh Avenue
New York, NY 10019-6829 USA**

And It is further agreed that service of process in such suit may be made upon **HDI Global Specialty SE** by notifying:

In Respects of Risks in All States:

**Mendes and Mount
750 Seventh Avenue
New York, NY 10019-6829 USA**

and that in any suit instituted against any one of them upon this contract, Insurers will abide by the final decision of such Court or of any Appellate Court in the event of an appeal.

The above-named are authorized and directed to accept service of process on behalf of Insurers in any such suit and/or upon the request of the Insured (or Reinsured) to give a written undertaking to the Insured (or Reinsured) that they will enter a general appearance upon Insurers' behalf in the event such a suit shall be instituted.

Further, pursuant to any statute of any state, territory or district of the United States which makes provision therefor, Insurers hereon hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as their true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the Insured (or Reinsured) or any beneficiary hereunder arising out of this contract of insurance (or reinsurance), and hereby designate the above-named as the person to whom the said officer is authorized to mail such process or a true copy thereof.

GREAT LAKES INSURANCE SE

DATA PROTECTION SHORT FORM PRIVACY NOTICE

This Privacy Notice is designed to help you understand how Great Lakes Insurance SE process your (Non-Public) Personal Information in relation to your insurance.

Who we are

Great Lakes Insurance SE (“we” or “us”) is the provider of your insurance. You may have purchased your insurance through another party, such as another insurance broker or through an intermediary used to place your insurance.

The basics

When arranging your insurance coverage, we collect (either indirectly or directly) and use (Non-Public) Personal Information about you necessary to provide insurance cover. We will collect and use your (Non-Public) Personal Information in line with our legal obligations under various Data Protection legislation.

This document is designed to help you understand how we process your (Non-Public) Personal Information for insurance purposes.

The information we **may** receive includes the following (Non-Public) Personal Information and Sensitive (Non-Public) Personal Information (Special Categories of Personal Data):

(Non-Public) Personal Information:

- your name
- date of birth
- address
- contact number
- email address
- your Social Security Number
- financial information
- any other information pertinent in connection with your insurance cover.

Sensitive (Non-Public) Personal Information (Special Categories of Personal Data)

- criminal convictions you may have
- information on your health

This information may also be shared with and used by a number of third parties in the insurance sector for example, insurers, agents or brokers, services providers, reinsurers, loss adjusters, sub-contractors, third-party auditors, regulators, law enforcement agencies, fraud and crime prevention and detection agencies and compulsory insurance databases. We will only disclose your (Non-Public) Personal Information in connection with the insurance cover provided and to the extent required or permitted by law.

Other people's details you provide to us

Where you provide us or your insurance broker or agent with details about other people, you must share this Great Lakes Insurance SE Data Protection Short Form Privacy Notice with them.

Confidentiality and Security

Your privacy is important to us and we follow strict security and organisational procedures in the processing, storage and destruction of your information.

Contacting us and your rights

You have rights in relation to the information we hold about you, including the right to access your information.

If you wish to exercise your rights, discuss how we use your information or request a copy of our privacy notices, please contact us using the details below:

Address: Data Protection Officer
Great Lakes Insurance SE
1 Fen Court
London, EC3M 5BN
United Kingdom
Telephone: +44 (0) 20 3003 7000
Email: dataprotection@glise.com

Our full privacy notices (UK GDPR and CCPA notices) are available to be viewed at <https://www.munichre.com/en/general/privacy.html>

- ❖ Move down to the middle of the page until you find the header “Data Protection information structured by Munich Re Group entities and Topics”.
- ❖ On the table under this heading, click on ‘Entity’ – this will change the list of documents in the table.
- ❖ Move to the bottom of the table where you will find Great Lakes Insurance SE (GLISE) and Great Lakes Insurance UK Limited named.
- ❖ Click on Great Lakes Insurance SE (GLISE) and Great Lakes Insurance UK Limited to reveal the privacy notices for that entity.
- ❖ Click on the name of the document to view the Privacy Notice.

Munich Re Specialty – North America

Data Protection Short Form Privacy Notice

Munich Re Specialty – North America is a trading name of Bell & Clements Limited. Where “MRS-NA” is used in this Privacy Notice it means Bell & Clements Limited.

This Privacy Notice is designed to help you understand how MRS-NA (“we” or “us”) process your (Non-Public) Personal Information in relation to your insurance.

Who we are

MRS-NA act as intermediaries facilitating the placement and purchase of insurance.

As an insurance intermediary, our role is to act as a bridge between your insurance representative, (insurance broker or agent) and the insurance provider.

The basics

When arranging your insurance coverage, your insurance broker or agent will provide us with (Non-Public) Personal Information necessary for arranging your insurance cover, which we will collect and use in line with our legal obligations under various Data Protection legislation.

This document is designed to help you understand how we process your (Non-Public) Personal Information for insurance purposes.

The information we may receive from your insurance broker or agent includes the following (Non-Public) Personal Information and Sensitive (Non-Public) Personal Information (Special Categories of Personal Data):

(Non-Public) Personal Information:

- your name
- date of birth
- address
- contact number
- email address
- your Social Security Number
- financial information
- any other information pertinent in connection with your insurance cover.

Sensitive (Non-Public) Personal Information (Special Categories of Personal Data)

- criminal convictions you may have
- information on your health

This information may also be shared with and used by a number of third parties in the insurance sector for example, insurers, agents or brokers (insurance intermediaries), services providers, reinsurers, loss adjusters, sub-contractors, third-party auditors, regulators, law enforcement agencies, fraud and crime prevention and detection agencies and compulsory insurance databases.

We will only disclose your (Non-Public) Personal Information in connection with the insurance cover provided and to the extent required or permitted by law.

Other people's details you provide to us

Where you provide us or your insurance broker or agent with details about other people, you must share this MRS-NA Data Protection Short Form Privacy Notice with them.

Confidentiality and Security

Your privacy is important to us and we follow strict security and organisational procedures in the processing, storage and destruction of your information.

Contacting us and your rights

You have rights in relation to the information we hold about you, including the right to access your information.

If you wish to exercise your rights, discuss how we use your information or request a copy of our privacy notices, please contact us using the details provide below.

Address: Data Protection Officer
 Bell & Clements Limited
 1 Fen Court
 London, EC3M 5BN
 United Kingdom
Telephone: +44 (0) 20 3003 7000
Email: dataprotection@bellandclements.co.uk

Our full privacy notices (UK GDPR and CCPA notices) are available to be viewed at <https://www.munichre.com/specialty/north-america/en/solutions/binding-authorities/general/privacy-statement.html>

CALIFORNIA SURPLUS LINES NOTICE 1 (POST BIND)

IMPORTANT NOTICE

1. The insurance policy that you have purchased is being issued by an insurer that is not licensed by the State of California. These companies are called “nonadmitted” or “surplus line” insurers.
2. The insurer is not subject to the financial solvency regulation and enforcement that apply to California licensed insurers.
3. The insurer does not participate in any of the insurance guarantee funds created by California law. Therefore, these funds will not pay your claims or protect your assets if the insurer becomes insolvent and is unable to make payments as promised.
4. The insurer should be licensed either as a foreign insurer in another state in the United States or as a non-United States (alien) insurer. You should ask questions of your insurance agent, broker, or “surplus line” broker or contact the California Department of Insurance at the toll-free number 1-800-927-4357 or internet website www.insurance.ca.gov. Ask whether or not the insurer is licensed as a foreign or non-United States (alien) insurer and for additional information about the insurer. You may also visit the NAIC’s internet website at www.naic.org. The NAIC - the National Association of Insurance Commissioners - is the regulatory support organization created and governed by the chief insurance regulators in the United States.
5. Foreign insurers should be licensed by a state in the United States and you may contact that state’s department of insurance to obtain more information about that insurer.

You can find a link to each state from the NAIC internet website: https://naic.org/state_web_map.htm

6. For non-United States (alien) insurers, the insurer should be licensed by a country outside of the United States and should be on the NAIC's International Insurers Department (IID) listing of approved nonadmitted non-United States insurers. Ask your agent, broker, or "surplus line" broker to obtain more information about that insurer.

7. California maintains a "List of Approved Surplus Line Insurers (LASLI)." Ask your agent or broker if the insurer is on that list, or view that list at the internet website of the California Department of Insurance: www.insurance.ca.gov/01-consumers/120-company/07-lasli/lasli.cfm

8. If you, as the applicant, required that the insurance policy you have purchased be effective immediately, either because existing coverage was going to lapse within two business days or because you were required to have coverage within two business days, and you did not receive this disclosure form and a request for your signature until after coverage became effective, you have the right to cancel this policy within five days of receiving this disclosure. If you cancel coverage, the premium will be prorated and any broker's fee charged for this insurance will be returned to you.

D-2 (Effective January 1, 2020)

CALIFORNIA COMPLAINTS NOTICE

To request assistance or make an initial complaint, you should contact Tokio Marine Highland Insurance Services, Inc. at:

**Tokio Marine Highland Insurance Services, Inc.
9200 S. Dadeland Blvd., Ste 409
Miami, FL 33156
1-888-386-9488**

In the alternative, you may wish to contact the Lloyd's Complaints Department at:

**Lloyd's Complaints Department
c/o Lloyd's America Inc.
280 Park Avenue,
East Tower, 25th Floor,
New York, NY 10017,
USA**

**Phone: 1-844-849-7828
Email: complaints@lloyds.com**

The California Department of Insurance should be contacted only after discussions with the insurer, its agent, or representative, have failed to produce a satisfactory resolution. You may contact the California Department of Insurance to obtain information on your rights or make a complaint at:

**Consumer Hotline
1-800-927-4357 (HELP)**

**TDD Number
1-800-482-4833 (TTY)**

**California Department of Insurance
Consumer Services Division
300 South Spring Street, South Tower
Los Angeles, CA 90013**

CCPA PRIVACY POLICY¹

UNDERWRITERS / INSURERS

This CCPA Privacy Policy explains how Certain Underwriters / Insurers (“we” or “us”) collect, use, and disclose personal information subject to the California Consumer Privacy Act (“CCPA”), as amended (including by the California Privacy Rights Act). “Personal information” is information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular California resident (“consumer”) or household. This CCPA Privacy Policy also describes the privacy rights of California consumers and how they can exercise those rights.

The CCPA may apply to personal information we collect in connection with providing products or services to businesses and providing products or services to individuals. The CCPA does not apply to certain types of information, such as information subject to the Gramm-Leach-Bliley Act (“GLBA”) or the Fair Credit Reporting Act (“FCRA”). This means that this CCPA Privacy Policy may not apply to personal information that we collect about individuals who seek, apply for, or obtain insurance products or services for personal, family, or household purposes.

PERSONAL INFORMATION WE COLLECT

We may collect, and in the past 12 months, may have collected, the categories of personal information described below from the sources described below. Some of this personal information may be subject to GLBA or FCRA.

Directly From You

We may collect, and in the past 12 months may have collected, the following categories of personal information about you that you include in your application or other forms that you submit, or that you otherwise provide to us:

- [Personal identifiers, such as name, postal address, email address, policy number, or account number
- Customer records information, such as financial information or phone number
- Protected information, such as gender, age, or marital status
- Commercial information, such as records of personal property and insurance products or services purchased or obtained, purchasing or consuming histories, or transaction or account information
- Professional or employment related information, such as work history
- Education information, such as school and date of graduation
- Sensitive personal information, such as Social Security number, driver’s license number, or passport number; financial account information; racial or ethnic origin; religious beliefs; health insurance information or other information about health; and sexual orientation]²

From Our Affiliates and Third Parties

We may collect the following categories of personal information about you from our affiliates and other third parties, such as agents, brokers, consumer reporting agencies, or loss adjusters:

- [Personal identifiers, such as name, postal address, email address, policy number, or account number
- Customer records information, such as financial information or phone number

- Protected information, such as gender, age, or marital status
- Commercial information, such as information about your transactions with our affiliates or other parties (e.g., balances and payment history), records of personal property and insurance products or services purchased or obtained, purchasing or consuming histories, transaction or account information, credit-worthiness, claims history, or credit history
- Professional or employment related information, such as work history
- Education information, such as school and date of graduation
- Sensitive personal information, such as Social Security number, driver's license number, or passport number; financial account information; racial or ethnic origin; religious beliefs; health insurance information or other information about health; and sexual orientation]³

We may also draw inferences from the personal information we collect directly from you or from our affiliates and third parties.

HOW WE USE PERSONAL INFORMATION

The purposes for which we use personal information depend on our relationship or interaction with a specific California consumer. We may use, and in the past 12 months may have used, personal information to underwrite your insurance policy and evaluate claims under your policy; to operate and manage our business; to provide and maintain our insurance products and services; to verify your identity; to detect and prevent fraud; for vendor management purposes; to operate, manage, and maintain our business, such as developing and marketing our products and services; to conduct research and data analysis; to prepare for or complete a corporate transaction; to comply with applicable laws; to respond to civil, criminal, or regulatory lawsuits or investigations; to exercise our rights or defend against legal claims; to resolve complaints and disputes; to perform compliance activities; and to perform institutional risk control.

PERSONAL INFORMATION WE DISCLOSE

We may disclose, and in the past 12 months may have disclosed, each of the categories of personal information described in "Personal Information We Collect" for the purposes described in "How We Use Personal Information" to the following categories of third parties:⁴

- Affiliates
- Agents
- Brokers
- Service providers, such as loss adjusters, fraud prevention services, and software providers
- Entities involved in a corporate transaction
- Regulatory and law enforcement agencies
- Attorneys, auditors, and other business partners

In the past 12 months, we did not sell or share personal information, as the terms "sell" and "share" are defined under the CCPA.

We use and disclose sensitive personal information only for the following purposes: (i) to perform services or provide goods reasonably expected by an average consumer; (ii) to prevent, detect, and investigate security incidents; (iii) to resist malicious or illegal actions directed at us and prosecute those responsible; (iv) to ensure the physical safety of individuals; (v) for short-term, transient use, including non-personalized advertising; (vi) to perform internal services; (vii) to verify, maintain, or improve the quality or safety of our products or services; and (viii) for purposes that do not infer characteristics about you.⁵

RETENTION OF PERSONAL INFORMATION

In general, we retain personal information for as long as needed to fulfil the purposes described in this CCPA Privacy Policy or as needed to comply with our legal obligations. For example, we retain personal information to underwrite insurance policies and evaluate claims, to operate, manage, analyze, and improve our business, and to exercise and defend our rights and comply with our legal obligations.⁶

YOUR RIGHTS

You may have certain rights under the CCPA. These rights are subject to certain conditions and exceptions. Your rights under the CCPA may include:⁷

- **Right to Request to Know.** You have the right to request to know the following information about our practices: (i) the categories of personal information we collected about you; (ii) the categories of sources from which we collected the personal information about you; (iii) the categories of third parties with whom we disclose personal information, (iv) the categories of personal information we sold or disclosed about you and the categories of third parties to whom we sold or disclosed that particular category of personal information; (v) our business or commercial purpose for collecting, selling, or sharing your personal information; and (vi) the specific pieces of personal information we collected about you.

You may exercise your right to request to know twice a year, free of charge. If we are unable to fulfil your request to know, we will let you know the reason why. Please note, in response to a request to know, we are prohibited from disclosing your Social Security number; driver's license number or other government-issued identification number; financial account number; any health insurance or medical identification number; an account password, security questions and answers; or unique biometric data generated from measurements or technical analysis of human characteristics.

- **Right to Request to Delete.** You have the right to request that we delete the personal information that we have collected from you. We may deny your request under certain circumstances, such as if we need to retain your personal information to comply with our legal obligations or if retaining the information is necessary to complete a transaction for which your personal information was collected. If we deny your request to delete, we will let you know the reason why.
- **Right to Request to Correct.** You have the right to request that we correct inaccurate personal information that we maintain about you. We may reject your request under certain circumstances, such as we determine that the contested information is more likely than not accurate based on the totality of the circumstances.
- **Right to Non-Discrimination.** If you choose to exercise any of these rights, we will not discriminate against you in any way.

If you, or your authorized agent, would like to make a request to know, request to delete, or request to correct, email your agent or broker who handled this insurance at the email address under "Contacting Us" below.

We will take steps to verify your identity before processing your request to know, request to delete, or request to correct. We will not fulfil your request unless you have provided sufficient information for us to reasonably verify that you are the individual about whom we collected personal information. We may request additional information about you so that we can verify your identity, such as your name, email address, and phone number.⁸ We will only use additional personal information you provide to verify your identity and to process your request.

You may use an authorized agent to submit your rights request. When we verify your agent's request, we may both verify your identity and request a signed document from your agent that authorizes the agent to make the request on your behalf. To protect your personal information, we reserve the right to deny a request from an agent that does not submit proof that they have been authorized by you to act on your behalf. You may also make a consumer request on behalf of your minor child.

UPDATES TO PRIVACY NOTICE

We may change or update this CCPA Privacy Policy from time to time. If we make material changes to this CCPA Privacy Policy, we will provide you with an updated copy of the policy.

CONTACTING US

If you have any questions or concerns about this CCPA Privacy Policy or would like to learn more about how we protect your privacy, please contact the agent or broker through whom you purchased this insurance policy at contactus@tmhighland.com or Tokio Marine Highland Insurance Services, Inc., 9200 S. Dadeland Blvd., Ste 409, Miami, FL 33156.

LMA9191A - CCPA Privacy Notice (amended) – Tysers (amended)

17 August 2023

¹ This privacy policy does not cover agents of the Underwriters or visitors to the Underwriters' websites. A description of the processing of personal information of agents and coverholders and website visitors (if the Underwriters have a website) will need to be added to this privacy policy or a separate policy for these individuals will need to be created.

² The categories of personal information under the CCPA that are most likely being collected have been listed. The categories of personal information we did not include are biometric information; geolocation information; internet or other electronic network activity; audio, electronic, visual, or olfactory information; precise geolocation (a form of sensitive personal information); union membership (a form of sensitive personal information); contents of messages not directed to the business (a form of sensitive personal information); genetic data (a form of sensitive personal information); and biometric data used to uniquely identify a person (a form of sensitive personal information) since it seemed unlikely that the Underwriters are collecting this information. This section should be customized so that categories or types of personal information not being collected are deleted. If a specific type of personal information is collected that is not included, that specific piece of personal information should be added to the relevant category.

³ The categories of personal information under the CCPA that are most likely being collected have been listed. The categories of personal information we did not include are biometric information; geolocation information; internet or other electronic network activity; audio, electronic, visual, or olfactory information; precise geolocation (a form of sensitive personal information); union membership (a form of sensitive personal information); contents of messages not directed to the business (a form of sensitive personal information); genetic data (a form of sensitive personal information); and biometric data used to uniquely identify a person (a form of sensitive personal information) since it seemed unlikely that the Underwriters are collecting this information from affiliates or third parties. This section should be customized so that categories or types of personal information not being collected are deleted. If a specific type of personal information is collected that is not included, that specific piece of personal information should be added to the relevant category.

⁴ Underwriters should confirm this section is accurate as to the parties with whom personal information is shared. It has been assumed that all categories of personal information in "Personal Information We Collect" are disclosed to all categories of recipients in this section. If certain categories of personal information are disclosed to only certain categories of recipients, this section will need to be amended/updated to explain which categories of personal information are disclosed to which categories of recipients.

⁵ It has been assumed that the Underwriters use and disclose sensitive personal information for these purposes alone. If sensitive personal information is used or disclosed for other purposes, the notice will need to be amended/updated to explain that sensitive personal information is used or disclosed for other purposes and to include the right to limit the use and disclosure of sensitive personal information.

⁶ CCPA requires a description of either (a) the length of time that the Underwriters intend to retain each category of personal information or (b) the criteria used to determine the retention period. If inaccurate, this section should be customized to describe the criteria used to determine retention periods.

⁷ It has been assumed that the Underwriters are not selling or sharing consumers' personal information and the right to opt-out of the sale or sharing of personal information has therefore not been included. If personal information is being sold or shared, this notice will need to be amended/updated.

⁸ The information that a consumer must provide for their rights request to be verified must be described. It has been assumed that Underwriters may use name, email address, and telephone number to verify identity. Underwriters should confirm this is accurate and update/amend with the specifics of their verification process.